

Ineson v. Gray Coach Lines

[1960] O.R. 661

ONTARIO

COURT OF APPEAL

PORTER, C.J.O., MacKAY and LeBEL, JJ.A.

OCTOBER 31, 1960.

Carriers -- Bus -- Stop close to stopping place -- Passenger preparing to alight -- Driver moving bus -- Fall -- Liability.

One of the defendant's buses stopped close to the regular stopping place and the plaintiff a passenger on the bus moved to the front of the bus and was waiting for the driver to open the door for her to alight. The driver then started up the bus again to pull in closer to the side of the road and caught the plaintiff off balance and she fell and was injured.

Per LeBel, J.A., Porter, C.J.O., concurring: In the circumstances the onus was on the defendant to show that the plaintiff's injuries were not caused by its driver's negligence. When a public vehicle is brought to a stop and passengers can reasonably assume that they are entitled to alight the vehicle should remain stopped until the passengers desiring to alight have alighted in safety. In the circumstances the plaintiff having fallen as a result of the driver moving the bus when the plaintiff had moved to the door to alight, the defendant had not discharged the onus on it of disproving negligence.

Per MacKay, J.A., dissenting: The onus was on the plaintiff to prove negligence. In the circumstances the plaintiff's fall was due to the fact that she was off balance when the driver moved the bus forward and was not due to any unusual jerk. The mere stopping of the bus without the doors being opened is not

an invitation to alight and the mere happening of an accident is not in itself, without proof of some unusual occurrence sufficient to call for an explanation by the defendant. Assuming the driver saw the plaintiff standing ready to alight holding on with both hands he would have no reason to anticipate that she might fall if he moved the bus.

THIS was an appeal by the plaintiff from the judgment of Barlow, J., 21st December 1959, dismissing the action with costs.

The plaintiff's action was for damages for injuries sustained, 8th October 1958, caused by a fall in a bus operated by the defendant. The plaintiff, a passenger in the bus, when the bus reached Georgetown, where she intended to alight, moved to the front of the bus and stood waiting for the bus to stop holding on with both hands. Her allegation was that the bus came to a stop and then just as she was about to prepare to alight although the doors were not then open the bus started up again suddenly and she was caught off balance and fell sustaining certain injuries. The trial Judge concluded on the evidence that the bus driver had not been negligent and that there was nothing unusual in the manner in which the bus was brought to a stop. He also held that the plaintiff had not exercised reasonable care for her own safety.

W.F. Griffiths, for the plaintiff, appellant: Although the defendant as a public carrier of passengers is not an insurer, there is a heavy burden on the defendant carrier to establish that its driver used all due care to prevent injury to the plaintiff passenger. The care required is of a very high degree: *Day v. T.T.C.*, [1940] S.C.R. 433. When a passenger in a public carrier shows that she was injured by the sudden starting or stopping of the vehicle, the onus of proof shifts to the defendant carrier to establish that the injuries of the passenger were not occasioned by the negligence of its driver: *Schultz v. Sandwich R.*, [1940] O.W.N. 123, *Johnson v. Halifax Elec. Tramway* (1917), 51 N.S.R. 274. When a bus is brought to a stop where passengers might reasonably assume they are entitled to alight, the bus should remain stopped until the descent of the passengers is safely accomplished: *Letcher v.*

Toronto Ry. (1910), 1 O.W.R. 59 -- leave to appeal refused 15 O.W.R. 65, Rossi v. Ottawa Elec. R. (1906), 8 O.W.R. 98, Winnipeg Elec. v. Schwartz (1912), 49 S.C.R. 80. There was no duty cast upon the plaintiff to take hold of a handrail of the bus or to guard against possible injury that might arise from some act of negligence on the part of the defendant driver: Letcher v. Toronto R., supra.

W.G. Chase, for the defendant: The trial Judge was right in his finding that assuming that an accident occurred to the plaintiff on the defendant's bus, there was no negligence on the part of the bus driver. The plaintiff says that she fell when the bus started up to pull off the highway onto the shoulder of the road and there was nothing unusual about the way the bus started up. She admits that the doors of the bus were not opened at all before the accident. Nowhere in the evidence is there any suggestion that the bus started suddenly. Accepting the plaintiff's own evidence, that when the bus first stopped, it stopped on the highway with its doors closed, there was no invitation to the plaintiff to alight. If she fell, it was the result of her failure to steady herself on the bus until it had come to a stop for the purpose of discharging passengers. The defendant as a public carrier, is not an insurer of the safety of its passengers. Its undertaking is to take all due care and to carry safely as far as reasonable care and forethought can attain that end: 4 Hals., 3rd ed., p. 174, Montreal Tramways v. Leveille, [1933] S.C.R. 456, at p. 466, Robar v. Neagle, [1955] 2 D.L.R. 541, Smith v. Transcontinental, [1942] 1 D.L.R. 499, G.T.R. v. Murphy S.C.R. 101, 13 Corp. Jur. Sec., p. 1410, Selman v. Detroit (1938), 278 N.W. 112.

Griffiths, in reply.

C.S.McC.

Cur. adv. vult.

W.F. Griffiths, for the plaintiff, appellant.

W.G. Chase, for the defendant.

LeBEL J.A., with whom Porter C.J.O., concurred:-- The plaintiff is a widow, 72 years of age. Her action is for damages for injuries sustained 8th October 1958 when she was thrown to the floor of the defendant's bus while a passenger therein. She pleads that her injuries were caused by the negligence of the driver of the bus. Her complaint is that he stopped the bus in Georgetown at a point where she might reasonably anticipate that she could safely alight, and then suddenly and without warning, started the bus again causing her to be thrown down heavily. She alleges that as a result she suffered injuries to her back and arms, a severe strain on her internal organs resulting in a prolapse of the uterus, and severe shock.

The plaintiff resides in Acton and she testified that over a period of at least a year she travelled in the defendant's buses between that town and Georgetown where she was employed as a housekeeper by a Mrs. Holmes.

As the bus approached her stop in front of the I.G.A. grocery store in Georgetown on the morning of the accident, she arose from her seat -- about 4 seats back -- and walked to the front of the bus and handed her ticket to the driver. When the bus stopped she was standing on the top step leading down to the front door with her hand on the top rail anticipating that the driver was going to open the door for her. Just as she was in the act of taking her first step down the steps before the door was opened but while she still had her hand on the rail, the bus suddenly started up jerking her off her feet and throwing her down on her back. Her head went under the front seat and she struck the back of her head and bruised her arm and back on the steps.

The cause of the plaintiff's fall as related by her, was not disputed. The driver of the bus, Langford swore that he had no knowledge whatever of the incident and he said he could not recall making the stop in front of the grocery store that morning, although he admitted that as a rule he stopped there.

He said he remembered that the plaintiff travelled in his bus and that he knew she stopped riding with him about the end of October. He also admitted that when people were standing in the bus he had to exercise greater care when he started up or stopped.

The learned Judge did not reject the plaintiff's testimony. It stood uncontradicted. He concluded, however, that Langford had not been negligent -- that there was nothing unusual in the manner in which the bus was brought to a stop. He also decided that the plaintiff had not exercised reasonable care for her own safety. With the utmost respect I find myself unable to agree with either of these conclusions upon the undisputed facts of the case.

It was neither pleaded nor argued, at least before us, that the bus driver was negligent in the manner in which he stopped his bus. The plaintiff's case is, as I have said, that the driver started up or allowed the bus to start up suddenly, while the plaintiff was standing, for no good reason disclosed in evidence. The plaintiff seems to have assumed afterwards that he was attempting to get in closer to the store, but obviously she did not know why he started up and she had no reason to anticipate that he might do so. Langford swore that normally there weren't 2 stops associated with that one place. That sudden unexplained start, not the stop which preceded it, precipitated the plaintiff's fall. In these circumstances the onus was upon the defendant to establish that the plaintiff's injuries were occasioned without negligence on the part of its driver: *Schultz v. Sandwich R.*, [1940] O.W.N. 123, *Guilday v. Winnipeg Elec.*, [1922] 70 D.L.R. 517. In the case at bar there was no attempt whatever to discharge this burden.

The learned trial Judge did not say why he thought the plaintiff failed to exercise reasonable care for her own safety, and with respect I am unable to appreciate how it can be held that the plaintiff was in any way at fault. Her walking to the front of the bus before it stopped did not contribute to her fall certainly. She was standing steadying herself with her hands in a position of safety before the sudden starting up threw her off her feet; and the fact that

she had moved to go down the steps before the driver opened the door for her, was not negligence in my opinion. The bus was stopped in front of the grocery store -- there was no exact fixed stopping place according to the driver -- and the plaintiff was entitled to think that he would open the door for her momentarily. The following is taken from the driver's testimony.

Q. And when you have taken the ticket from a passenger then all that remains as far as the passenger is concerned is to get off? A. That is all. Q. The exit on your bus is at the front? A. Yes. Q. And they would pass you on the way out? A. They do. Q. After they have given you the ticket, then you open the door and they get out? A. That's right. Q. Assuming someone has given you the ticket and is stopping at the top step ready to get out and you find it necessary to move the bus, what do you normally do? A. Well, as a rule I let them off then. Q. But you are not going to let them off and you are going to move the bus. What would you do? A. Sure. Q. Do you understand the question? A. You understand the reason? If people were there to get on, I let them off. Q. Yes, but do you understand my question? A passenger has given you the ticket and is standing at the top step ready to get off the bus but you find you now must move the bus. What would you do? A. Let them off. Q. Before you moved? A. Oh yes, unless it was in a ditch or something. But if they could step off in a decent place I would let them off.

And there was no ditch or anything there for he swore

Q. What would you say then as to whether or not there would be any variation in where you stopped? A. Anywhere from 20 to 50 ft. there. There is 200 ft. of pavement there that you can pull off on. Q. 200 ft. of pavement. Where would that be located? A. Right there in front of the I.G.A., along that stretch. Q. Opposite the I.G.A. Store? A. Yes. Q. On what side of the highway? A. It would be on the south. Q. As a general rule when you came in to stop opposite the I.G.A. store in Georgetown would you stop your bus on the highway or not? A. No, I would get right off.

When the vehicle of a public carrier is brought to a stop and passengers can reasonably assume that they are entitled to alight, the bus should remain stopped until the passengers have descended to the street in safety: *Letcher v. Toronto R.* (1910), 14 D.W.R. 1240, at pp. 1242-3, *Rossi v. Ottawa Elec. R.* (1906), 8 O.W.R. 98, *Winnipeg Elec. v. Schwartz* (1912), 49 S.C.R. 80.

While it seems rather strange the Langford did not know about the plaintiff's fall in the circumstances -- she was the only passenger getting off the bus at the time -- the learned Judge accepted his testimony on the point and his finding should not be disturbed. The plaintiff did not report the accident to the defendant until about a month later, but she gave a reasonable explanation for her delay in my opinion. In the first place, she thought that Langford was aware that she had fallen because she testified

My back hit on the iron of the step. Then the bus driver turned around to me and said, 'That is not the way to get off the bus.'

His remark was ruled inadmissible upon the authority of *Jarvis v. London St. R.* (1919), 45 O.L.R. 167, but with respect, in that case the carrier's conductor had said

It was my fault. I should not have opened the door but I thought the car had stopped.

The remark in this case was altogether different and my respectful view is that what Langford said to the plaintiff was admissible as part of the *res gestae*. It was not mere narrative or discussion anent a thing then past. Per Middleton, J., in the *Jarvis* case, at p. 172, who went on to say

The principle upon which such evidence can be admitted is clearly stated in *Garner v. Stamford* (1903), 7 O.L.R. 50; to make the statement admissible, it must be an involuntary and contemporaneous exclamation made without time for reflection; it is because the statement is involuntary and

contemporaneous that it is received. These characteristics are supposed to import some indication of its veracity.

Furthermore, her explanation for not writing the defendant until 8th November 1960 was that she had tried to carry on her housework for Mrs. Holmes under extreme difficulty for about 2 weeks, at about which time she consulted her physician, Dr. Buckner. In cross-examination she was asked why she hadn't consulted him before 6th November. Her reply was

A. Because I thought I would be all right. I never thought it would take such an effect on me. I was working against willpower. I was fighting it off me all the time, trying to keep up.

From that it is plain that she did not take her injuries too seriously at first and that she was not malingering. And as I have said, her testimony was not discredited by the learned Judge.

The plaintiff's most serious complaint with regard to her injuries was that her fall in the bus had precipitated a prolapse of her uterus. She said that she herself had noticed this condition within a few days afterwards, but had thought it would right itself, particularly after she had remained in bed as directed by her physician. When that did not eventuate, Dr. Somerville, a qualified gynaecologist, was called upon to examine her 2nd February. On 23rd February he performed a surgical operation upon her in hospital which he described as a Fothergill type of plastic surgery. In this doctor's opinion the prolapse could have been precipitated by a sudden severe strain. It was not disputed that her health before the accident had been excellent, that she had given normal birth to 4 children and that she had never before experienced any trouble with her internal organs. For the defence Dr. Connell chief of obstetrics and gynaecology at the Toronto General Hospital, testified. He had never seen the plaintiff before he saw her in Court. He expressed the opinion that it was extremely unlikely that the prolapse had had anything to do with the fall on the bus. There was a possibility, he said, but it would be extremely remote. He did, however, agree that

while impact with the floor would not cause such an injury -- which was the burden of his opinion, -- increased intra-abdominal pressure (i.e. strain) exerted to avoid a fall might cause a prolapse. The learned trial Judge accepted this doctor's testimony as the equivalent of an expressed opinion that there could be no causal connection between the fall and the prolapse. With the utmost respect I am unable to agree. Upon the balance of probabilities I think the causal connection was established. If the strain involved in the plaintiff's fall did not cause the prolapse there is nothing in evidence which suggests any other cause.

The learned trial Judge would have allowed the plaintiff the sum of \$1,195.76 as special damages (her full out-of-pocket expenses, including the cost of both the operation and the hospitalization, as well as her loss of wages) in his assessment of her total damages at \$3,195,76. It must be held, therefore, that he would have awarded her \$2,000 as general damages for all her injuries and her pain and suffering. It was not seriously argued that the damages should be increased on the ground that they were inordinately low.

In the result and for these reasons, the within appeal should be allowed with costs. The judgment dismissing the plaintiff's action should be set aside, and in its place the plaintiff should have judgment at trial for the sum of \$3,195,76 and costs.

MackAY, J.A., dissenting:-- The plaintiff, a widow of 72 years of age, lived in the town of Acton and was employed as a housekeeper in the neighbouring town of Georgetown for more than a year prior to the accident. During that time she had ridden daily as a fare-paying passenger on the defendant's bus, usually arriving in Georgetown at 9.30 A.M. and returning to Acton in the evening.

The plaintiff was not immediately incapacitated by her fall and continued to work for several days after the accident and did not make any claim against the defendant company until 8th November 1958. At the trial the driver of the bus said he had no recollection or knowledge of the accident or of the

movements of the bus at the time of the accident so that the question of liability or no liability in this case turns on the evidence of the plaintiff. Her evidence in regard to the accident is as follows

Q. You were then at the front of the bus waiting to get off? A. I was on the top step. Q. Were you hanging on to anything? A. I had my hand on where you put the luggage. Q. With your left hand? A. Yes. Q. Were you hanging on also with your right hand? A. I was just standing with this hand by the other seat, you know, steadying myself. Q. That is with both hands hanging on? A. That's right. Q. You say the bus then started up? A. Yes. Q. And that was to pull off the highway, I suppose? A. That's Q. When it started up to pull off the highway, to pull on to the shoulder of the road, is that right? A. Yes. Q. It was when it started up to pull off from the highway on to the shoulder of the road that you fell, is that right? A. Yes. When he started the bus up again I fell. Q. Well, then at any time before the accident had the bus driver opened the door on the bus or not? A, Before the accident? Q. Yes. A. Well, he always used to know where I got off, the bus driver did. Q. That is not the question. Is it a fact that the bus driver had not opened the door at all before the accident? A. No, he hadn't. Q. It remained closed? A. Yes. And I was waiting for it to open. Q. When the bus started up was there anything unusual about the way it started up? A. Well, I thought he was going to open the door and the bus started off and I wasn't aware of it and of course my hand was pulled off and I slipped right on to the floor. Q. I am asking you this, Mrs. Ineson, and I want you to pay close attention to this question, if you will. Was there anything unusual about the way the bus started up on this occasion as it pulled off the highway on to the shoulder? A. Well, I don't know what you mean. I cannot follow you. Q. Well, the question is just simply this, was there anything unusual about the way the bus started up on that occasion? A. Well, it jerked. It pulled up like it generally does and when you are not aware and you are waiting for the door to open. Q. Would you say there was anything unusual about the way it started up? A. No, I can't. Q. Beg pardon? A. No. I was waiting for the door to

open and he started the bus up and it threw me off my feet. Q. It started up in the usual way? A. It jerked me. As they pull the bus up they always jerk. Q. Was there something unusual about the way the bus started up or did it start up in the same way that it would start up at any other time? A. He just pulled the bus, I suppose, to move in and as I was aware he was going to open the door for me. Q. So there was nothing unusual then about the way the bus started up; is that the fact? A. No. It just pulled and jerked me and that threw me off my feet. Q. Well, I wondered -- A. You see, when you are ready to go down the steps you are not aware the bus is going to start. I had one foot just starting to put down but I didn't get it on the bottom before the bus started off again. Q. Was that the only thing that was unusual about the way the bus started up, that you weren't aware it was going to start up? A. Yes, that's right. Q. Otherwise it started up in the usual way; is that right? A. Yes. MR. CHASE: ... I wish to read in from the examination for discovery of the plaintiff, E. Ineson. Page 5, beginning at p. 50: 'Q. 50. Can you describe the manner in which the bus started off? A. It started going again. He pulled it further in towards the highway. I wasn't looking at his hands -- I was looking at the door. Q. 51. Was there anything unusual about the way it started up? A. It just started off again. Q. 52. Was there anything unusual in the way he started off? A. No.

The bus driver said in evidence that the highway was a two-lane highway; that the Georgetown stop was in front of the I.G.A. store and that there was a paved strip 200 ft. long in front of the store and immediately adjoining the highway and that it was his usual practice to drive off the highway onto the paved strip to discharge and take on passengers.

I am of the opinion that on this evidence the learned trial Judge was right in dismissing the plaintiff's action. I do not think there is any dispute as to the principles of law to be applied. The duty of care of public carriers is stated in 4 Hals., 3rd e., p. 174, para. 445, as follows

Standard of care. Carriers of passengers are not insurers

of the safety of the persons whom they carry ... Their undertaking is to take all due care, and to carry safely as far as reasonable care and forethought can attain that end ...

Counsel for the appellant in his submissions, laid much stress on the fact that no explanation of the accident was given by the defendant and submitted that the plaintiff, having proved the fact of the accident having occurred on the defendant's vehicle, the onus of disproving negligence shifted to the defendant.

The rule as to shifting onus applicable in this case is, I think, correctly stated in Fleming, Law Torts, p. 294 as follows

It is well to remember that, in order to establish a cause of action in negligence, it is necessary to persuade the Court that the defendant owed the plaintiff a duty of care, that the defendant broke that duty by careless acts or omissions, and that such failure to exercise due care was a legally sufficient 'cause' of the harm. The legal burden of proof on the issues of fact involved in this inquiry rests on the plaintiff, because it is he who is seeking the assistance of the judicial process to vindicate his claim to legal protection. But once he has established a prima facie case, the burden of adducing evidence shifts to the defendant to rebut the inference of negligence arising from the plaintiff's evidence. If he fails to give a satisfactory explanation, a verdict in favour of the plaintiff will almost inevitably result, though in the last resort the question is always whether the plaintiff has by a preponderance of evidence established his case. In that sense, the burden of proof rests on him throughout the trial.

The principle is stated by Lord Porter in *Barkway v. S. Wales Transport*, [1950] 1 All E.R. 392, at pp. 394-5 as follows

As was said by Erle, C.J., in *Scott v. London Dock* (1865), 3 H. & C. 596, at p. 601. '...where the thing is shown to be under the management of the defendant or his servants, and

the accident is such as in the ordinary course of things does not happen if those who have the management use proper care, it affords reasonable evidence, in the absence of explanation by the defendants, that the accident arose from want of care.' The doctrine is dependent on the absence of explanation, and, although it is the duty of the defendants, if they desire to protect themselves, to give an adequate explanation of the cause of the accident, yet, if the facts are sufficiently known, the question ceases to be one where the facts speak for themselves, and the solution is to be found by determining whether, on the facts as established, negligence is to be inferred or not.

The case mainly relied on by counsel for the appellant as to shifting of the burden of proof was *Schultz v. Sandwich R. Co.*, [1940] O.W.N. 123, at p. 12, Masten, J.A. said

As regards the question of the onus probandi or burden of proof, the rule of evidence is well-settled. There can be no doubt that in the beginning and on the pleadings the burden of proof rested on the plaintiff to establish negligence on the part of the defendant as the basis of her claim. Also there can be no doubt in the present case that, when her evidence disclosed a sudden stopping of the bus without warning and that in consequence she was thrown to the floor of the bus and injured, she made a *prima facie* case and that thereupon the burden of proof shifted, and the onus rested on the defendant to satisfy the trial Judge that the act of the driver in suddenly stopping the bus was justified, and was not the result of negligence; but in the end when the explanation had been given that the stopping occurred owing to the necessity of suddenly stopping the bus in order to save the life of the woman who was pursuing her hat, it was for the Judge to say whether upon all the facts the bus driver was or was not guilty of negligence.

In the present case it seems to me a reasonable inference from the evidence to which I have referred, that for some reason the bus driver first stopped at least partly on the highway and was pulling forward onto the paved strip in front of the store when the plaintiff fell and that she fell not by

reason of any unusual jerk of the bus but because she was about to step down and was off balance at the moment the bus moved forward. The plaintiff's evidence does not show that there was any sudden jerk or jolt in either the starting or stopping of the bus and no other occurrence that should not be normally anticipated on the part of a passenger on a bus. Under modern traffic conditions it is not unusual for a bus or street car to stop and then move forward. I do not think that the mere stopping of a bus without the doors being opened is an invitation to passengers to alight and the mere fact of an accident having happened is not in itself, without evidence of some unusual occurrence, sufficient to require an explanation from the defendant. Assuming that the bus driver saw the plaintiff standing on the platform holding the railings with both hands, he would have no reason to anticipate that she might fall if he moved the bus forward in the usual manner, that is without any unusual jerk or jolt.

In these circumstances the plaintiff has not made out a case. She has not satisfied the initial burden that rested on her of showing that the accident happened by reason of an unusual occurrence that required an explanation. It is a case such as that referred to by Lord Porter in the *Barkway* case, *supra*, where the facts are sufficiently known and the question the learned trial Judge had to determine was whether on these facts, negligence was to be inferred.

I should perhaps also deal with the question of whether the plaintiff, by a preponderance of credible evidence, proved that her damages were caused by the fall. The learned trial Judge accepted the evidence of Dr. Cannell that in his opinion her injuries in so far as the prolapse of the uterus were concerned, were not caused by the fall. The furthest he was prepared to go was that there was a possibility not a probability, that her condition was accelerated or brought on by the fall. I think that the statement of Lamont, J., in the case of *Montreal Tramways v. Leveille*, [1933] S.C.R. 456, is applicable in this case. At p. 466 he said

The general principle in accordance with which in cases like the present the sufficiency of the evidence is to be

determined was stated by Lord Chancellor Loreburn in *Richard Evans & Co. v. Astley*, [1911] A.C. 678, as follows:--

'It is, of course, impossible to lay down in words any scale or standard by which you can measure the degree of proof which will suffice to support a particular conclusion of fact. The applicant must prove his case. This does not mean that he must demonstrate his case. If the more probable conclusion is that for which he contends, and there is anything pointing to it, then there is evidence for a Court to act upon. Any conclusion short of certainty may be miscalled conjecture or surmise but Courts, like individuals, habitually act upon a balance of probabilities.'

There was undoubtedly evidence to go to the jury that the mother's accident was caused by the fault of the company, and the jury's finding on that point cannot be disturbed. That such fault caused the deformity of the child cannot, from the nature of things, be established by direct evidence. It may, however, be established by a presumption or inference drawn from facts proved to the satisfaction of the jury. These facts must be consistent one with the other and must furnish data from which the presumption can be reasonably drawn. It is not sufficient that the evidence affords material for a conjecture that the child's deformity may have been due to the consequences of the mother's accident. It must go further and be sufficient to justify a reasonable man in concluding, not as a mere guess or conjecture, but as a deduction from the evidence, that there is a reasonable probability that the deformity was due to such accident.

On this branch of the case I am not prepared to disagree with the finding of the learned trial Judge.

For these reasons I would dismiss the appeal with costs if demanded.

Appeal allowed.

MacKay, J.A., dissenting.